

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN UGANDA

Complete Community Opposition How-To

This guide uses the Ugandan terms and bodies you'll actually run into — the ESIA and the certificate of approval, NEMA and its Executive Director, the public hearing, customary and mailo land, the Uganda Human Rights Commission, degazettement — and explains each in plain words the first time. Civic space is restricted and, around the oil projects especially, dangerous, so this guide favours lawful, technical work and puts your safety first.

INTRODUCTION & FRAMEWORK

In 2007 the government announced it would hand about one-third of the **Mabira Forest** — a rainforest reserve since 1932 and a vital catchment for Lake Victoria — to a sugar company, the Mehta Group's **SCOUL**, to clear for sugarcane. What followed showed both the power of Ugandans united and the danger of losing discipline. A nationwide campaign — the "**Save Mabira Crusade**," led by the environmental group **NAPE** with the Anglican Church, the Buganda kingdom, MPs, and citizens from every walk of life — spoke, as organisers put it, "with one voice." Under that pressure the government **backed down and shelved the giveaway**. The forest still stands. But the 2007 protest also spilled into a riot in which people died, and — shamefully — into xenophobic violence against Ugandans of Indian descent, which cost lives and handed the government a pretext. The lesson is double: **a united public can force even this government to reverse a project — but only disciplined, lawful, inclusive nonviolence protects both the cause and the people.**

The Save Mabira Crusade — NAPE with the Anglican Church, the Buganda kingdom, MPs, and citizens speaking "with one voice" — drew on a real, if narrow, toolkit, used lawfully and backed by disciplined public pressure. An **ESIA certificate** is required from **NEMA** before major projects. **Public participation** and, where NEMA decides, a **public hearing** are required. The Constitution protects **customary and mailo land**, with a right to **prompt, fair, and adequate compensation** before compulsory acquisition. The **courts** are open, and the **Uganda Human Rights Commission (UHRC)** investigates. But these tools have grave limits, and this guide states them plainly. The government revived the Mabira plan in 2011, so even this win had to be defended — and Mabira is the exception: Uganda prioritises investment and state-led development, above all the **oil and pipeline projects** (Tilenga, Kingfisher, and the East African Crude Oil Pipeline, EACOP), which almost always proceed. Civic space is restricted and tightening; the government has **arrested and harassed environmental and land-rights defenders** and suspended NGOs, especially around oil. So outright reversals are rare, the danger is real, and the safest, most effective work is usually **technical, procedural, and lawful** — not confrontation that can be branded anti-government.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Ugandan project needs its **ESIA certificate** (from NEMA); where it takes land, it must respect **customary/mailo land** and pay **prompt, fair, and adequate compensation**; where it takes a **forest reserve**, it needs a **degazettement** you can oppose; and its decisions can be challenged in the **courts** and raised with the **UHRC**. Every one of those is a link you can grab. **Find the one closest to your hand and**

pull — lawfully, and safely.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation — safety first:

- **If it takes your land, the compensation and land-rights law is your sharpest, safest lever** — prompt, fair, and adequate compensation and replacement land where the law requires it.
- **If it takes a forest reserve, the degazettement can be opposed** — Mabira was saved that way.
- **If the ESIA was skipped or defective, the courts are a real route** — civil society has taken the oil ESIA to court.
- **The danger is real, especially around oil** — defenders have been arrested, so work lawfully and technically, keep any mobilisation disciplined, nonviolent, and inclusive, and protect your people.

Read the whole guide once before you move. Two habits run through it: **use the levers lawfully** — the ESIA, land and compensation rights, the degazettement, the courts, the UHRC — and **combine them**, safely: the documents, the participation, the legal routes, disciplined public pressure, and the press. That combination, kept lawful and inclusive, is how Mabira was saved.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **ESIA certificate of approval**, issued by **NEMA** (the National Environment Management Authority) — note the weak point: by NEMA's **Executive Director**, on an assessment prepared by the developer's own accredited expert. Sector authorities grant the licences. **Land** decisions engage customary and mailo tenure and the compensation rules. A **forest reserve** needs a **degazettement**. And the **courts** review it all. Know which decision you can reach — and remember the land-and-compensation and degazettement levers are often the safest.

How a Project Moves — and Where You Jump In

The ESIA and participation. The developer files a **project brief**, then a full **ESIA** with **scoping** and **public participation**, and a **public hearing** where NEMA decides one is needed. *Your opening — and it arms every later step:* take part lawfully, put your objections on the record, and insist the participation genuinely happened.

Land and compensation. Where land is taken, **customary/mailo** rights apply and compensation must be **prompt, fair, and adequate**. *Your opening — a powerful, safe one:* inadequate or delayed compensation, or acquisition without replacement land where required, is unlawful.

The degazettement. A forest reserve needs degazetting. *Your opening:* oppose it — the Mabira lever.

The certificate and construction. *Your opening:* a defective ESIA, challengeable in the courts; and the UHRC.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company and, often, foreign-investor and state records. **What it still needs** — the ESIA certificate not issued, the land not acquired or compensated,

the degazettement not done, financing not closed: whatever's missing is the soft spot. **Who's paying and lending** — international financiers, insurers, and banks with their own standards (the EACOP fight has turned partly on lenders and insurers withdrawing).

Who's Supposed to Be Watching

Each is an ally or an arena — used carefully. **NEMA** issues the certificate (the Executive Director decides). The **courts** hear challenges — civil society has taken the oil ESIA's there. The **UHRC** takes rights complaints. **International lenders, insurers, and networks** reach a project's foreign backers. And — with care given the restricted space — Uganda's **lawful civil society, its lawyers, the church and cultural institutions, and its press** are the forces that reach furthest — the coalition that saved Mabira.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether land and compensation are engaged, whether a degazettement can be opposed, whether the ESIA was defective, and — always — how much danger resistance carries.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents (lawfully)	5–10%	weeks	low	The base for everything else
Participation / public hearing	15–35%	during ESIA	low	On record; conditions or a redo
Land-rights / compensation claim	30–55%	months–yr	low	Compensation raised; unlawful acquisition blocked
Opposing a degazettement	25–50%	months–yr	low	Reserve retained (Mabira)
Court challenge to a defective ESIA	20–45%	1–3 yr	low–mod	Certificate examined or sent back
UHRC complaint	15–35%	months–yr	low	Findings; pressure; some protection
Lender / insurer pressure (international)	20–45%	months–yr	low	Financing or cover withdrawn
Everything together (land/degazettement, disciplined public, world watching)	30–55%	1–3 yr	low–mod	Reversed, improved, delayed, conditioned
Everything together (oil / state-backed, closed space)	10–35%	years	low–mod, risky	Better compensation, delay — protect people first

The levers that move the needle most are the **land-and-compensation rights**, opposing a **degazettement**, and the **courts**, backed by the UHRC and lender pressure — and, as at Mabira, **disciplined, inclusive public unity**. Mabira shows the ceiling (a forest giveaway reversed) and the honest floor (a restricted, dangerous space where oil almost always proceeds). So aim for reversal where a Mabira-like opening exists, and for improved compensation, a retained reserve, delay, and a sent-back ESIA elsewhere — and protect your people.

On cost and safety: participating, using land rights, and complaints are low-cost; lawyers and international networks bring the bigger cases. But the danger is real, especially around oil — work lawfully and technically, keep mobilisation disciplined, nonviolent, and inclusive, protect the vulnerable, and route risk through lawyers, the UHRC, and international allies.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this ESIA, this land taking, this degazettement — is strong. Answer five questions in writing, safely.

1. What is it, and who's behind it? Name the project, the company, its owners, its foreign investors and lenders.

2. Where is it, and what does it touch? Get the footprint and lay it over **customary and mailo land, forest reserves** (any degazettement), water and wetlands, farmland, communities. **Land taken and a forest-reserve degazettement are your sharpest, safest levers**, so establish these first — Mabira turned on a reserve, and oil turns on land and compensation.

3. What stage is it at, and what's the next deadline? Is the ESIA in participation? Has the certificate issued (opening a court challenge)? Is a degazettement or land acquisition under way? These openings are time-bound.

4. What does it still need that it lacks? An ESIA certificate not issued, land not lawfully acquired or compensated, a degazettement not done, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring communities, lawful civil society, the church and cultural institutions, and — for oil — international allies. Mabira united a nation; keep it disciplined.

What this looks like in real life. A community learns a project is planned that takes its land or a forest reserve, its ESIA thin. The five questions yield: a company (and foreign lenders) behind it; a site on customary land or a reserve (the safe, sharp levers); an ESIA in process; a project still needing its certificate, land, and degazettement; and a coalition of communities, church, and civil society. That's the Mabira/land pattern — insist on lawful compensation, oppose the degazettement, and — if it fits — unite the public, disciplined and inclusive.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — gathered **lawfully and safely**. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the project brief, the ESIA and conditions, the certificate, the degazettement papers, the land, valuation, and compensation records. Use lawful channels. Then read them hard for flaws — an understated impact, an ignored alternative, a public hearing skipped, a degazettement of a valuable reserve, and compensation that is delayed, inadequate, or without the replacement land the law requires.

Layer two: the ground truth. Dated, located photographs and video of the site, the land, the forest, the water — baseline evidence most of all — and, carefully, the testimony of affected residents. In dangerous contexts, especially oil, weigh the risk to anyone documenting.

Layer three: the map of land, reserves, and compensation. Lay the project over the customary/mailo land, the forest reserves and any degazettement, and the water, so each lever is visible. This feeds the compensation claim, the degazettement challenge, and any court case.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The project brief, the ESIA and conditions, the certificate, the degazettement papers, the land and compensation records** — from NEMA, the sector authority, the forest authority, and land offices; use lawful channels (8A).
- **Land documentation** — customary/mailo records, to establish tenure and the compensation right.
- **Ownership, investors, and lenders** — company records and financing information.
- **The land-reserve-and-compensation map** — customary land, reserves and degazettement, and water, laid over the site.
- **Dated evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — but in Uganda, build it **lawfully, disciplined, and inclusive**, because confrontation is dangerous and losing discipline (as in 2007) is deadly and self-defeating. Four moves.

Start with a tight, trusted core. The residents most affected, the people who know the land, a few tireless organisers, and respected local, cultural, and faith leaders — people you trust.

Build a broad, disciplined, inclusive coalition. Mabira's power came from a united front — environmentalists, the church, the Buganda kingdom, MPs, ordinary citizens — speaking "with one voice." Build the widest coalition, and keep it strictly **nonviolent and inclusive**: the 2007 slide into xenophobic violence cost lives and handed the government a pretext, so discipline is both principle and strategy.

Bring in lawyers and, for big projects, international allies — early. Public-interest lawyers who run land, compensation, and ESIA cases (civil society has taken the oil ESIA to court), and international networks that bring lender and insurer pressure and a measure of protection.

Build to last — and protect people. Ugandan fights run for years, and the space is dangerous. Build clear roles, a secure archive, careful communications, a way to decide together, and a serious safety plan. Keep everything lawful, disciplined, and inclusive, avoid anything that can be branded anti-government or turned xenophobic, protect the vulnerable, and route danger through lawyers, the UHRC, and international networks.

STEP 4: LEGAL CHALLENGES, LAND, COMPENSATION & THE DEGAZETTEMENT

Law is a real Ugandan lever — used lawfully — and land and the degazettement are often the safest ground.

Participate Lawfully First

Everything downstream is stronger if you took part lawfully in the ESIA (and demanded the public hearing) and put your objections on the record. A skipped hearing or a token participation is a defect.

Land Rights and Compensation — the Safest Sharp Lever

Where a project takes land, Uganda's **Constitution and Land Act** protect **customary and mailo** tenure and require **prompt, fair, and adequate compensation** — and **replacement land** where the law demands it — before compulsory acquisition. Compensation that is delayed, inadequate, or leaves people without land is unlawful and widely documented. This is often your strongest and safest ground: insist on the standard the law sets.

The Degazettement and the Courts

A **forest reserve** (or wetland) needs a **degazettement** you can oppose — the Mabira lever, which saved that forest. And a **defective or skipped ESIA** can be challenged in the **courts**, as civil society has done with the oil ESIA's. These are real routes — used lawfully.

The Honest Limits

Straight talk: the land-and-compensation rights, the degazettement, and the courts are real levers, but NEMA's Executive Director issues the certificate on a developer's assessment, the courts have at times been used against communities, the space is restricted, and — the gravest limit — resistance can be dangerous and oil almost always proceeds. So use the strong tools — the ESIA, land and compensation rights, the degazettement, the courts, the UHRC, lender pressure — lawfully, keep any mobilisation disciplined and inclusive, protect your people, and count improved compensation, a retained reserve, a sent-back ESIA, delay, and conditions as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Land becomes a right. Not "we don't want the project" but *"this is our customary/mailo land, and the law requires prompt, fair, and adequate compensation and replacement land before it can be taken."*

A degazettement becomes a false bargain. *"This is a protected reserve, not surplus land — degazetting it for this project is wrong and unlawful,"* as Mabira showed.

An ESIA flaw becomes a court case. *"The ESIA was skipped / fatally defective / the hearing never held — grounds for the courts to examine the certificate."*

The harm becomes an international story. *"The forest, the land, the livelihoods our families depend on — taken without lawful compensation, while the world watches."*

Match it to the venue: the objections to NEMA; the compensation and land claim to the authorities and the courts; the degazettement to the forest authority and the courts; the lenders to international pressure; the human story to the press.

STEP 5: MEDIA STRATEGY

In Uganda, disciplined public attention and international pressure both count — Mabira became a national cause, and the oil fight turns partly on global lenders — but the domestic space is constrained and, around oil, dangerous, so handle media with care.

Lead with people and place, lawfully framed. Not "the government is corrupt" but "the forest, the land, the livelihoods our families depend on — taken without lawful compensation." Use your strongest material: dated evidence, the land-and-reserve map, and — carefully — human voices, without exposing anyone. Keep the message inclusive and never xenophobic.

Work several audiences at once — reach the lenders. Lawful domestic channels build some pressure; international media and networks reach the project's financiers and insurers (as in the EACOP campaign) and help protect people. Make it easy: captioned evidence, accurate summaries, a map, careful voices — and let the community decide what is said and by whom.

Two hard rules. Accuracy above all — one exaggeration can be used against you. And protect people above everything, and keep the message disciplined and inclusive — the 2007 xenophobic turn is the cautionary tale.

EMAILS & LETTERS

Make them your own; keep them factual, lawful, and calm; keep copies safely; and protect anyone at risk.

8A — Request for the ESIA and records (to NEMA).

Subject: Request for the ESIA and certificate — [project].

"We, residents of [place], request the project brief, the ESIA and its conditions, the certificate, the degazettement papers, and the land and compensation records for [project] at [location]. [Contact.]"

8B — Objection / request for a public hearing.

Subject: Objection and request for a public hearing — [project].

"We, residents of [place], object to [project]: [it takes our customary/mailo land without lawful compensation; it degazettes a valuable reserve; the ESIA understates the impact]. We request a public hearing. [Attach evidence.]"

8C — Compensation and land claim (to the authorities / a lawyer).

Subject: Compensation and land rights — [project].

"Our land at [location] is customary/mailo land, and the Constitution requires prompt, fair, and adequate compensation and replacement land before acquisition. The [offer / process] falls short: [specifics]. We ask that this be corrected. [Attach evidence.]"

8D — To a public-interest lawyer (ESIA / degazettement).

Subject: Legal challenge — [project].

"Our community faces [project], which [takes our land / degazettes a reserve] on [a defective ESIA]. We've gathered [the ESIA, land records, photographs] and ask you to help challenge it in the courts, as partners. [Contact and evidence summary.]"

8E — To the Uganda Human Rights Commission.

Subject: Complaint — [project] at [location].

"We ask the UHRC to investigate [project], which [takes our land without lawful compensation / threatens our community], and [any threats to community members]. [Attach evidence.]"

8F — To an international lender or insurer.

Subject: Environmental, land, and rights risk in [project].

"We understand your institution may be [financing / insuring] [project] at [location], which [takes land without lawful compensation / lacks a sound ESIA] and faces challenge. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [land / forest] from [project].

"For generations the people of [place] have lived from [the land / the forest] at [location]. Now [project] threatens it — without the lawful compensation the Constitution requires. We can provide dated evidence, a map — and, carefully, interviews. [Contact.]"

8H — Rallying the community (lawfully, disciplined, inclusive).

Subject: We can protect our land — here's how, lawfully and united.

"[Project] threatens [our land / forest]. Mabira Forest was saved when Ugandans united, with one voice, to reverse a giveaway. Through lawful compensation claims, opposing the degazettement, the courts, the UHRC, and disciplined, nonviolent, inclusive unity, we have a real chance — protecting one another, and never turning on our neighbours. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order — lawfully and safely:

- 1. Nail down the project, its footprint, whether it takes land or a reserve.** Land and the degazettement are your safest, sharpest levers.
- 2. Take part in the ESIA and object (8B); demand the public hearing.**
- 3. Insist on prompt, fair, and adequate compensation and replacement land (8C); oppose any degazettement.**
- 4. Request the documents (8A) lawfully; check the ESIA and the compensation.**
- 5. Get a lawyer for a land, compensation, or ESIA case (8D); involve the UHRC (8E).**
- 6. Build a disciplined, inclusive coalition, reach lenders and international allies, and go public carefully (8F/8G/8H).** Mabira was saved this way.

Even lean, those six use the safest levers, open the legal and lender fronts, and keep your people safe — disciplined and inclusive.

WHEN THE SYSTEM IS TILTED

Uganda's tools are real but narrow, and the field is heavily tilted, especially around oil — plan for it, safety first.

When the state backs the project (above all oil). Work lawfully and technically — the compensation and land rights, the degazettement, the courts, the UHRC, lender pressure — avoid confrontation that can be branded anti-government, and aim for improved compensation, a retained reserve, delay, and a sent-back ESIA as real wins.

When compensation is delayed or inadequate. This is widely documented and unlawful. Insist on the prompt, fair, and adequate standard and replacement land — your strongest, safest ground.

When defenders are targeted. Around oil especially, the danger is real. Keep everything lawful, disciplined, nonviolent, and inclusive, protect the vulnerable, work through lawyers and the UHRC, and let international attention be a shield.

When a win is revived. This is the Mabira lesson: a shelved giveaway can return. Guard your win — keep the coalition and the vigilance alive.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Uganda has documented problems with the capture of land, forest, and large projects by political and investor interests, so this matters — approach it with great care.

How to spot it. ESIA certificates against the evidence; a degazettement of a valuable reserve dressed up as surplus; compensation withheld or diverted; land steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **Inspectorate of Government (IGG)** investigates corruption. The **Auditor General** examines public money. The **UHRC** takes rights complaints. The **courts** can examine an unlawful decision. And Uganda's **press and civil society** have exposed captured projects — though the space is constrained.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Do not make public accusations you can't back; in this space they can be dangerous. Route serious evidence to the IGG, the Auditor General, and trusted lawyers and international networks, protect witnesses above all, and pair the exposure with the lawful legal challenge.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, lawfully. The documents build your proof; pinning down the land and degazettement levers aims it; a disciplined, inclusive coalition builds the muscle; the compensation, degazettement, and ESIA cases press it; international attention raises the cost and protects your people. Together they multiply. One at a time, they stall — and defend the win.

Early on (weeks 1–8): nail down the project, its footprint, whether it takes land or a reserve; take part in the ESIA and object; insist on lawful compensation and oppose any degazettement; request the records lawfully; get a lawyer and, for big projects, international allies.

In the thick of it (months–years): press the compensation and land claim; challenge a defective ESIA or the degazettement in the courts; involve the UHRC and lenders; build disciplined, inclusive public pressure;

use international attention carefully.

The long haul (years): carry the cases through the courts; keep the lawful coalition and the attention alive; hold the line for improved compensation, a retained reserve, a sent-back ESIA, delay, and conditions — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in Uganda can be done — a united, nationwide public forced the government to reverse the Mabira Forest giveaway, and the forest still stands. Hold both truths, and learn Mabira's double lesson. Uganda's tools are real, if narrow: an ESIA certificate no project can lawfully skip; public participation and a public hearing; strong land and compensation rights over customary and mailo land; the degazettement that can be opposed; the courts; and the UHRC. And the constraints are heavy: a certificate issued by NEMA's Executive Director on a developer's assessment, documented compensation failures, a restricted and dangerous civic space, oil projects that almost always proceed — and the hard truth that when the Mabira protests lost discipline and turned xenophobic, people died and the cause was damaged.

Here's the discipline that wins, and it stays lawful, safe, and inclusive. Establish whether it takes land or a forest reserve — your safest, sharpest levers. Take part in the ESIA, insist on prompt, fair, and adequate compensation and replacement land, and oppose any degazettement. Challenge a defective ESIA or an unlawful acquisition in the courts, involve the UHRC, and reach the international lenders. Build the broadest coalition you can — and keep it strictly nonviolent and inclusive, never turning on your neighbours. Protect your people above every other consideration. Count improved compensation, a retained reserve, a sent-back ESIA, delay, and conditions as wins. That's what Mabira did — a united public, with one voice — and its darker moments are the reason discipline and inclusiveness are not optional. So can you — lawfully, and safely.